

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUOE012330: JACOB SCHNEIDER vs SDLA COURIER SERVICE INC, et al.

08/19/2026 in Department 44

Motion for Preliminary Approval of Class Action Settlement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion for Preliminary Approval of Class Action Settlement, Conditional Certification, Approval of Class Notice, and Setting of Final Approval Hearing Date (“Motion”)

Tentative Ruling:

The Court GRANTS the Motion, subject to the modifications and conditions stated below.

The Court previously granted preliminary approval subject to specified modifications and continued the matter to permit Plaintiffs to address those issues. The supplemental papers and amended settlement documents adequately address the Court’s concerns, with some modifications required in the proposed order and class notice as set forth below. In particular, Plaintiffs have explained the January 5, 2019 commencement of the Class Period; corrected the hearing department to Department 44; addressed potentially related actions; provided for notice in English and Spanish; removed Lab. Code § 1174.5 from the released claims; designated a cy pres recipient; and reduced the requested class representative service awards to \$5,000 per Plaintiff.

1. Summary of Proposed and Preliminarily Approved Monetary Terms

Description	Proposed	Preliminarily Approved
Gross Settlement Amount	\$2,210,000	\$2,210,000
Less: Attorney Fees (not to exceed)	Up to \$773,500 (35%)	\$729,300 (33%)
Less: Costs (not to exceed)	\$40,000	\$40,000
Less: Administrative Costs (not to exceed)	\$35,000	\$35,000
Less: PAGA Penalties	\$200,000	\$200,000
Less: Service Award	\$10,000 total (\$5,000 each)	\$10,000 total (\$5,000 each)
Net Settlement Before PAGA add-back ¹	\$1,151,500	\$1,372,500
Plus PAGA Penalty to Aggrieved Employees (75% to LWDA / 25% to Aggrieved Employees) ²	\$50,000	\$50,000
Net Settlement After PAGA add-back ¹	\$1,201,500	\$1,422,500

2. Timely Service

The Motion and supporting papers were electronically served on counsel for the Amazon Defendants and SDLA on March 3, 2026. The settlement agreement, Motion, and supporting declaration were also electronically submitted to the LWDA pursuant to Lab. Code § 2699(s)(2).

The July 28, 2026 supplemental declaration and proposed amended order were served on counsel for all Defendants. The amended settlement agreement and supplemental declaration were also electronically submitted to the LWDA on July 28, 2026.

The Court therefore finds service and notice adequate. (Lab. Code § 2699(s)(2); Code Civ. Proc. §§ 1005, 1010.6.)

3. Conformity with Rules of Court

The Court finds no present defect in the form of the papers warranting denial or further continuance. Counsel is reminded that all papers submitted in connection with final approval

¹ The figures reflect the stated maximum deductions and differ depending upon the amount ultimately awarded as attorney fees. Of the \$200,000 PAGA allocation, \$150,000 is payable to the LWDA and \$50,000 is distributed to Aggrieved Employees; accordingly, the \$50,000 employee share is added back in calculating the Net Settlement After PAGA Add-Back. Any requested fees, costs, service awards, or administrative expenses not approved by the Court will be added to the Net Settlement Amount for distribution to participating Class Members.

² Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Lab. Code § 2699(m).)

must comply with the applicable California Rules of Court, including rules governing page limitations, font size, pagination, and organization of exhibits.

4. Fairness of Settlement

At the preliminary approval stage, the Court determines whether the proposed settlement falls within the range of possible approval and whether notice to the class is warranted. (Cal. Rules of Court, rule 3.769; *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.)

The Court previously found the settlement within the range of reasonableness. The settlement was reached after investigation, exchange of employment and payroll information, and a full-day mediation before an experienced mediator. The parties dispute liability, including whether the Amazon Defendants jointly employed the putative class, the merits of the underlying wage-and-hour claims, class certification, the effect of arbitration agreements, and damages and penalties.

The Gross Settlement Amount is \$2.21 million. The parties estimated maximum exposure of at least \$26 million but realistic, risk-adjusted exposure of approximately \$2.3 million or more. The PAGA allocation of \$200,000 represents approximately 9.05% of the Gross Settlement Amount. In light of the litigation risks identified by the parties, the settlement remains within the range of possible approval.

The Court further finds, for purposes of preliminary approval, that the allocation between the Class Claims and PAGA claims is fair. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.)

The amended releases have also been narrowed to claims that were or could have been asserted based upon the facts, circumstances, or primary rights alleged in the action and PAGA notices. Lab. Code § 1174.5 has been removed from the Released Class Claims and Released PAGA Claims. The Released Parties are the Amazon Defendants and related entities; SDLA and its related entities are expressly excluded. The releases therefore appear appropriately tailored for preliminary approval. (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538-539.)

The Court notes, however, that the settlement expressly does not settle or release claims against SDLA. Accordingly, final approval of this settlement, standing alone, will not constitute a disposition of the claims against SDLA. Before entry of a final judgment closing the entire action, Plaintiffs must file an appropriate dismissal or otherwise establish the disposition of the claims against SDLA. Plaintiffs shall likewise confirm the disposition of Plaintiff Peters's separate action, which counsel represents will be dismissed upon approval of this settlement.

5. Conditional Class Certification

For settlement purposes only, the Court finds the requirements of Code Civ. Proc. § 382 satisfied and conditionally certifies the following settlement class:

All current and former hourly-paid or non-exempt employees of SDLA Courier Service, Inc. within the State of California at any time during the period from January 5, 2019 through August 10, 2024.

Plaintiffs have explained that the January 5, 2019 commencement date is based on Plaintiff Peters's prior action against SDLA, filed January 5, 2023, and the subsequent addition of Plaintiff Peters and her claims to this action through the First Amended Complaint.

The Aggrieved Employees are:

All current and former hourly-paid or non-exempt employees of SDLA Courier Service, Inc. within the State of California at any time during the period from May 12, 2022 through August 10, 2024.

The settlement presently estimates:

Approximately 4,798 Class Members;
Approximately 1,651 Aggrieved Employees;
Approximately 130,000 Eligible Workweeks; and
Approximately 29,717 Eligible Pay Periods.

Using a benchmark 25% attorney-fee amount (preliminary approval is up to 1/3 of the gross settlement amount as explained herein) and assuming the other maximum deductions, the Net Settlement Amount available for Individual Class Payments is approximately \$1,372,500, or approximately \$286.06 per Class Member on a simple average basis before consideration of individual workweeks. Actual Individual Class Payments will be allocated pro rata according to each participating Class Member's Eligible Workweeks.

The \$50,000 portion of the PAGA payment distributed to Aggrieved Employees represents an average of approximately \$30.28 per Aggrieved Employee, although actual Individual PAGA Payments will be allocated pro rata according to Eligible Pay Periods.

6. Appointments

For settlement purposes only, the Court appoints Jacob Schneider and Samantha Peters as Class Representatives.

The Court appoints Douglas Han and Shunt Tatavos-Gharajeh of Justice Law Corporation as Class Counsel.

The Court appoints Phoenix Class Action Administration Solution as Settlement Administrator. Counsel shall ensure that the Administrator's exact legal name is stated consistently throughout the settlement agreement, notice, and proposed orders.

SDLA shall be bound by the preliminary approval order only to the extent necessary to produce the Class Data required by the settlement agreement. SDLA shall produce the required Class Data in accordance with the deadlines stated in the settlement agreement and preliminary approval order.

7. Notice to the Class

The Court finds that the amended proposed Class Notice, subject to the corrections below, adequately advises Class Members of the nature of the action, material settlement terms, anticipated payments, requested attorney fees and costs, service awards, releases, procedures for challenging workweek and pay-period calculations, exclusion rights, objection rights, and the Final Approval Hearing, and therefore satisfies California Rules of Court, rule 3.766(d).

The amended settlement provides for the notice to be mailed in English and Spanish.

Before dissemination, however, counsel shall make the following clerical corrections and complete all remaining blanks:

1. Correct the identification of Defendant Amazon.com Services LLC wherever the notice presently refers to “Amazon.com, LLC” or otherwise states an incomplete or incorrect entity name.
2. State the exact and consistent name and complete contact information for the Settlement Administrator.
3. Insert the Court-approved Response Deadline and all deadlines for exclusions, objections, and challenges.
4. Insert the date and time of the Final Approval Hearing.
5. Insert the Settlement Administrator’s website address or otherwise revise references to such a website if none will be maintained.

6. Ensure that Department 44 is identified throughout.

Subject to these corrections, the Class Notice is approved.

8. Attorney Fee Award

Class Counsel continues to request attorney fees of up to \$773,500, or 35% of the Gross Settlement Amount.

The Court previously preliminarily approved fees of \$552,500, representing 25% of the Gross Settlement Amount, while permitting counsel to present additional evidence and argument supporting a higher award up to 1/3 of the gross settlement amount. (*Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480, 494-495.)

The July 28 supplemental declaration does not presently supply additional evidence justifying a 35% award. Instead, counsel states that additional evidence and argument will be presented at final approval. This is acceptable.

Accordingly, the Court will preliminarily approve up to 1/3 of the Gross Settlement Amount, but requires Plaintiffs to substantiate why an award exceeding a 25% benchmark fee award is appropriate. The Court reserves its discretion to determine the appropriate fee and methodology at final approval.

Any amount requested but not awarded as attorney fees will remain in or be returned to the Net Settlement Amount for distribution to participating Class Members.

9. Class Representative Service Awards

The amended settlement reduces the requested Class Representative Service Payments to \$5,000 for Jacob Schneider and \$5,000 for Samantha Peters, for a total of \$10,000.

The Court previously found \$5,000 per representative appropriate for preliminary approval in light of the representatives' asserted participation, time devoted to the litigation, assistance to counsel, participation in mediation and settlement review, and broader individual releases. The Court therefore preliminarily approves service awards of up to \$5,000 each, subject to final approval. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393-1395.)

10. Attorney Costs

Litigation costs of up to \$40,000 are preliminarily approved.

At final approval, Class Counsel shall substantiate the costs actually incurred, including supporting documentation for expert-related and other material expenses. Any amount not approved will be returned to the Net Settlement Amount.

11. Claims Administration Costs

Settlement administration expenses of up to \$35,000 are preliminarily approved, subject to substantiation of the actual amount at final approval.

12. Cy Pres

The amended settlement now provides that Individual Class Payment and Individual PAGA Payment checks remaining uncashed 180 days after mailing will be voided and the corresponding funds transmitted to Girls, Inc., rather than to the State Controller's Unclaimed Property Fund.

This amendment addresses the structural concern identified in the Court's prior ruling. However, before final approval, the parties shall identify the specific Girls, Inc. entity that will receive the funds and provide sufficient information for the Court to determine that the proposed recipient satisfies Code Civ. Proc. § 384, including declarations of counsel that the proposed distribution appropriately relates to the interests of the Class Members and purposes of the litigation, and that neither counsel nor the parties have an affiliation with Girls, Inc.

13. Order

Subject to the modifications stated above, Plaintiffs' Motion for Preliminary Approval of Class Action Settlement, Conditional Certification, Approval of Class Notice, and Setting of Final Approval Hearing Date is GRANTED.

The Court finds that the supplemental filing has adequately addressed the principal matters identified in the Court's prior preliminary-approval ruling, subject to the remaining conditions stated herein.

The Court will sign a proposed amended preliminary approval order consistent with this ruling.

The Final Approval Hearing is set for Wednesday, **April 14, 2027 at 1:30 p.m.** in Department 44.

The parties shall calculate the notice, response, exclusion, objection, challenge, and final-approval filing deadlines from the date selected by the Court and shall insert those dates, together with the Settlement Administrator's complete information, into the notice before dissemination.

The final approval motion should address final approval, to include the following information:

1. Substantiation of the fee award requested;
2. Substantiation of actual litigation and administration costs;
3. To establish that the proposed cy pres recipient satisfies Code Civ. Proc. § 384;
4. To report the number of notices mailed and undeliverable, exclusions, objections, and challenges, and the resulting estimated distributions;
5. To confirm the disposition of Plaintiff Peters's separate action; and
6. To establish the dismissal or other disposition of the claims against SDLA necessary for entry of a judgment closing the entire action.

Plaintiffs' counsel shall give notice.